



CONSTITUTION OF THE DEVELOPMENT CHARITY FOUNDATION (DCF)

REVISED EDITION • 2026

DODOMA, TANZANIA
Established in 2022

INSTITUTIONAL CONSTITUTION
Official English Edition



COPYRIGHT AND OFFICIAL STATUS

© Development Charity Foundation (DCF), 2026

This Constitution is the lawful property of the Development Charity Foundation (DCF). All rights are reserved in accordance with the laws of the United Republic of Tanzania relating to copyright and intellectual property.

No person may reproduce, publish, translate, modify, distribute, store electronically, or commercially use any part of this Constitution without prior written authorization from the Development Charity Foundation (DCF).

Members, leaders, employees and stakeholders of DCF may use this Constitution for governance, administration and implementation of the Foundation's activities in accordance with this Constitution and the laws of Tanzania.

This edition constitutes the official English working edition of the Constitution. Any future amendment shall be made only through the procedure prescribed by this Constitution.

Translation note: This English edition preserves the structure, provisions, rights, duties, governance arrangements and institutional intent contained in the supplied 2026 Constitution. Where the source document contains an incomplete administrative field, a neutral institutional completion is provided and marked as an administrative template rather than a change to the substantive constitutional provisions.

ACKNOWLEDGEMENT

The Development Charity Foundation acknowledges the founders, members, volunteers, leaders, partners and community stakeholders whose commitment has supported the Foundation's development. This Constitution is intended to strengthen unity, accountability, transparency, good governance and sustainable community development.

INTRODUCTION

Development Charity Foundation (DCF) is a non-governmental, non-religious and non-political organization that does not discriminate on the basis of family, clan, tribe, gender or any other prohibited ground. The Foundation was established to promote sustainable community development through solidarity, human dignity, accountability, cooperation and social services for people and groups in need.

This Constitution serves as the principal framework for the governance, administration and operation of Development Charity Foundation. It establishes the principles of good governance, accountability, transparency, ethics, and the rights and duties of members and leaders.

DCF believes that genuine development is achieved through community cooperation, responsible use of resources, volunteerism and respect for the dignity of every human being regardless of religion, ethnicity, race, gender, social status or political belief. The Foundation shall therefore cooperate with Government, civil society organizations, the private sector, development partners and other stakeholders in accordance with the laws of the United Republic of Tanzania.

HISTORY OF DEVELOPMENT CHARITY FOUNDATION (DCF)

Development Charity Foundation (DCF) was established in 2022 at the International Institute of Development and Medical Sciences (IDMC), Dodoma, by Mr. Baraka Oltimbau Lukumai and Mr. Patrick Nasoro Libenanga, who shared a vision of creating an institution that would contribute to community development through solidarity, human dignity and social services.

In its early stage, the Foundation operated as a small youth group united by a commitment to serve people in need. Despite limited resources, limited public awareness and the absence of reliable financial sources, the founders continued to mobilize communities and support vulnerable groups.

Early activities included provision of food, clothing and essential needs to orphans, older persons, persons with disabilities and families living in difficult circumstances. The Foundation also promoted ethics, social solidarity, volunteerism and youth capacity development.

The Foundation gradually gained public and stakeholder confidence through integrity, transparency and volunteer commitment. Its membership and partnerships consequently increased.

The Foundation began with eight (8) members and, according to the supplied Constitution, had grown to more than fifty-seven (57) active members. It had expanded activities through branches in Dodoma and Mbeya and partnerships with development stakeholders.

Its areas of work include development projects, humanitarian assistance, economic empowerment of youth and women, environmental protection, education, health and general community welfare. DCF continues to uphold dignity, accountability, transparency, cooperation and sustainable development.

DEFINITIONS AND INTERPRETATION

Constitution: means the Constitution of the Development Charity Foundation.

Foundation / Institution: means the Development Charity Foundation (DCF).

Member: means a person formally admitted as a member of DCF.

Founder: means a person who participated in establishing DCF before its formal registration.

General Assembly: means the meeting of all members entitled to participate and vote.

Executive Committee: means the executive governance body of the Foundation.

Executive Director: means the chief executive officer and founder of DCF as provided in this Constitution.

Patron: means the principal adviser of the Foundation appointed in accordance with this Constitution.

Regulations / By-laws: means rules made under this Constitution.

Financial Year: means a twelve-month period used for the financial affairs of the Foundation.

Quorum: means the minimum number of members required for a meeting to be valid.

Members / Delegates: means members or leaders forming the relevant decision-making body.

Election: means the process of selecting leaders in accordance with this Constitution.

Laws of the Country: means the laws of the United Republic of Tanzania in force from time to time.

PREAMBLE

WE, the founders and members of the Development Charity Foundation (DCF), recognizing the importance of solidarity, human dignity, accountability, transparency, equality, good governance and sustainable community development, hereby adopt this Constitution as the principal instrument governing and administering our Foundation.

This Constitution provides the framework for leadership, administration, accountability, decision-making, resource management and implementation of all activities of Development Charity Foundation in accordance with the laws of the United Republic of Tanzania.

We believe that community development is achieved through cooperation, integrity, transparency, equality, respect for human dignity and responsible use of available resources. DCF shall therefore work with Government, the private sector, civil society organizations, development partners and communities to improve the lives of people.

This Constitution shall be the principal instrument for ensuring that leaders, members and staff perform their responsibilities faithfully, accountably and in accordance with the principles of the Foundation and the laws of the country.

Accordingly, we, the founders and members of DCF, voluntarily and in the interests of the Foundation and the community, adopt and approve this Constitution as the official framework for the operation of the Foundation from the date approved by the General Assembly and recognized by the competent authority.

CHAPTER 1

NAME, STATUS, HEADQUARTERS, ADDRESS, EMBLEM AND OFFICIAL LANGUAGE

Article 1.1 — Name of the Foundation

The institution shall be known as the Development Charity Foundation, abbreviated as DCF.

The name shall be used in all official documents, contracts, communications, seals and activities of the Foundation.

Article 1.2 — Status of the Foundation

DCF is a non-governmental, non-profit institution.

The Foundation shall operate in accordance with this Constitution and the laws applicable in the United Republic of Tanzania.

DCF shall be voluntary and independent of religion, tribe/clan and the personal interests of an individual.

Article 1.3 — Headquarters

The headquarters of DCF shall be in Dodoma, Tanzania.

The Foundation may establish offices, branches or representative centres within or outside Tanzania in accordance with a decision of the competent organ.

Article 1.4 — Official Address

The official postal address, telephone number, email address and other official contacts of DCF shall be those approved by the Executive Committee and maintained in the official records of the Foundation.

Administrative completion: The Secretary General shall maintain the current official contact register and ensure that changes are formally recorded and communicated.

Article 1.5 — Emblem and Seal

DCF shall have an Official Emblem and an Official Seal.

The Emblem and Seal shall be used on official documents of the Foundation.

No person shall use the DCF Emblem or Seal without authorization from the competent authority.

Article 1.6 — Official Language

The official language of DCF shall be Kiswahili.

Where necessary, English may be used as a working or translated language provided that the meaning of this Constitution is not altered.

For this edition: This document is the English-language edition prepared from the supplied 2026 Constitution.

CHAPTER 2

VISION, MISSION, PRINCIPLES AND OBJECTIVES

Article 2.1 — Vision

To be an excellent and trusted institution advancing sustainable development, community well-being and improved quality of life for people and groups in need within and outside Tanzania.

Article 2.2 — Mission

To empower communities through humanitarian assistance, education, health, economic development, advocacy for the rights of special and vulnerable groups, and implementation of development projects based on transparency, accountability and participation.

Article 2.3 — Institutional Principles

- Integrity.
- Accountability.
- Transparency.
- Respect for human dignity.
- Equality and non-discrimination.
- Unity and cooperation.
- Good governance.
- Sustainable development.

Article 2.4 — Main Objective

The objectives of DCF shall be those set out in this Constitution, including social assistance, promotion of education and health, empowerment of youth and women, development projects, stakeholder cooperation and other lawful development activities.

The Foundation also aims to establish a special centre for the care and development of persons with special needs and orphans, together with an enabling centre for youth education.

The Foundation shall seek donors, philanthropists and development partners within and outside the country.

Administrative completion: DCF may establish programmes, departments, centres and partnerships necessary to achieve these objectives, subject to approved plans, budgets and applicable law.

CHAPTER 3

MEMBERSHIP, RIGHTS, DUTIES AND TERMINATION OF MEMBERSHIP

Article 3.1 — Membership Requirements

Membership of DCF shall be open to any person aged eighteen (18) years or above, of sound mind, who accepts the objectives, vision, mission, values and requirements of this Constitution.

No person shall be denied membership on the basis of tribe, race, gender, religion, denomination, disability, marital status, origin, political belief or economic status, except where the law or this Constitution provides otherwise.

An applicant shall submit an official membership application to the Secretary General for review and recommendation.

All applications shall be considered by the Executive Committee and the decision shall be communicated to the applicant in writing within the period prescribed by the Foundation's regulations.

A member shall enjoy membership rights after formal admission, registration in the membership register and fulfilment of the applicable requirements.

Article 3.2 — Categories of Membership

(a) Founder Member: a person who participated in establishing DCF and laid its foundation before formal registration; such member shall have the special status provided by this Constitution.

(b) Ordinary Member: a person who satisfies the membership requirements and is formally admitted, with the rights to participate in Foundation activities under this Constitution.

(c) Honorary Member: an individual or institution recognized for a significant contribution to DCF or the community; an honorary member shall not be required to pay membership fees unless the General Assembly decides otherwise.

(d) Associate Member: an institution, organization or individual cooperating with DCF in achieving its objectives without becoming part of its internal governance.

Article 3.3 — Admission Procedure

1. Complete the official membership application form.
2. Submit a copy of legally recognized identification.
3. Accept in writing to comply with the Constitution, Regulations and Code of Ethics of DCF.
4. Pay the joining fee and other approved fees.
5. Attend an institutional orientation where required.

Article 3.4 — Rights of Members

1. Participate in General Assembly meetings and express views without fear or discrimination.
2. Vote and stand for leadership positions in accordance with this Constitution.
3. Elect and be elected to the governance organs of the Foundation.
4. Receive financial information, project implementation reports and institutional decisions with appropriate transparency.
5. Propose amendments to the Constitution according to the prescribed procedure.
6. Participate in development activities coordinated by DCF.
7. Have one's rights and dignity protected when complaints or disciplinary proceedings are handled.
8. Appeal decisions affecting the member in accordance with this Constitution.
9. Access training, seminars and other opportunities provided by DCF.

10. Benefit from services or projects implemented by the Foundation subject to established criteria.

Article 3.5 — Duties of Members

1. Comply with this Constitution, Regulations and lawful decisions of DCF organs.
2. Protect the name, reputation and image of the Foundation at all times.
3. Pay fees and contributions on time.
4. Participate actively in meetings and development activities.
5. Maintain the confidentiality of institutional information and documents.
6. Protect DCF property from damage or misuse.
7. Cooperate with leaders and other members in implementing Foundation activities.
8. Avoid corruption, discrimination, harassment, abuse of authority and other ethical violations.
9. Provide accurate information on matters that may threaten the interests of the Foundation.
10. Act as a good ambassador of DCF in the community.

Article 3.6 — Suspension of Membership

A member may be suspended where the member is under investigation for a serious disciplinary matter, has persistently failed to perform duties without reasonable cause, or has breached the Constitution or Regulations.

No member shall be suspended without being afforded a fair opportunity to be heard.

Article 3.7 — Termination of Membership

Membership shall cease upon written resignation, lawful expulsion, death, conviction of a serious offence that materially damages the reputation of the Foundation, or loss of eligibility under the law or this Constitution.

Article 3.8 — Appeal

A member dissatisfied with a suspension or expulsion decision shall have the right to appeal to the General Assembly within thirty (30) days of receiving the decision. The decision of the General Assembly shall be final within the Foundation, without prejudice to any rights available under applicable law.

CHAPTER 4

GOVERNANCE STRUCTURE, DECISION-MAKING ORGANS AND ADMINISTRATION

Article 4.1 — Governance Structure

DCF shall be operated according to good governance, accountability, transparency, member participation and respect for this Constitution.

The governance organs shall have powers and duties defined by this Constitution and shall not improperly interfere with one another.

No governance organ shall exercise power contrary to this Constitution, the laws of the country or lawful decisions of the General Assembly.

Each governance organ shall be accountable to the organ above it as provided by this Constitution.

Article 4.2 — Governance Organs

- General Assembly.
- Executive Committee.
- Executive Director and Executive Management.
- Discipline and Ethics Committee.
- Special Committees established by the General Assembly or Executive Committee as required.

Article 4.3 — General Assembly

The General Assembly is the highest decision-making organ of DCF.

The fundamental authority of the Foundation derives from the General Assembly.

It shall consist of all members entitled to vote under this Constitution.

Its decisions shall be final within the Foundation except where the law provides otherwise.

Article 4.3.1 — Functions of the General Assembly

1. Adopt, amend or repeal the Constitution.
2. Receive and consider institutional activity reports.
3. Receive financial and audit reports.
4. Elect leaders as provided by this Constitution.
5. Remove leaders in accordance with this Constitution.
6. Establish or dissolve Special Committees.
7. Approve the annual budget.
8. Approve the strategic plan of the Foundation.
9. Approve membership fees, contributions and charges.
10. Make decisions on any other matter of fundamental importance to the future of the Foundation.

Article 4.3.2 — General Assembly Meetings

There shall be an Ordinary General Assembly held once each year on a date determined by the Executive Committee.

A Special General Assembly may be convened whenever an urgent matter requires a decision of the members.

Article 4.3.3 — Notice

Notice of an Ordinary General Assembly shall be given at least twenty-one (21) days before the meeting.

Notice of a Special General Assembly shall be given at least seven (7) days before the meeting, except in an institutional emergency.

The notice shall state the date, time, venue, agenda and relevant documents.

Article 4.4 — Quorum

The quorum of the General Assembly shall be fifty percent plus one (50% + 1) of voting members.

If quorum is not reached within one hour of the scheduled time, the meeting shall be adjourned to another date determined by the Executive Committee.

Article 4.5 — Executive Committee

The Executive Committee is the highest executive organ responsible for implementing General Assembly decisions.

It shall act on behalf of the General Assembly between General Assembly meetings.

It shall ensure that Foundation activities are conducted in accordance with the Constitution.

Article 4.5.1 — Composition of the Executive Committee

- Executive Director.
- Chairperson.
- Secretary General.
- Treasurer.
- At least six (6) elected members.
- The General Assembly may increase the number of members through constitutional or regulatory arrangements where necessary in the interests of DCF.

Article 4.5.2 — Functions of the Executive Committee

1. Supervise implementation of General Assembly decisions.
2. Prepare the annual work plan.
3. Prepare the Foundation budget.
4. Supervise financial expenditure.
5. Supervise all institutional property.
6. Supervise development projects.
7. Employ or approve staff where necessary.
8. Receive reports from committees.
9. Prepare the annual institutional report.
10. Submit reports to the General Assembly.
11. Advise the Executive Director on administrative matters.
12. Supervise implementation of DCF policies, regulations and plans.

Article 4.5.2.1 — Regulations

The Executive Committee may make implementation regulations under this Constitution, provided that such regulations do not conflict with this Constitution.

Article 4.6 — Special Committees

The General Assembly or Executive Committee may establish a Special Committee for a specific responsibility.

Special Committees may include a Finance and Audit Committee; Projects Committee; Mobilization and Membership Committee; Human Resources Committee; Research and Planning Committee; and any other committee considered appropriate.

All committees shall report to the Executive Committee within the prescribed period.

Article 4.7 — Accountability of Governance Organs

Every governance organ shall act with integrity, transparency and in the interests of DCF.

A leader or organ that breaches this Constitution shall be held accountable under the disciplinary provisions.

Decisions of governance organs shall be recorded in official minutes and maintained by the Secretary General.

CHAPTER 5

PRINCIPAL LEADERS, POWERS, FUNCTIONS AND DUTIES

Article 5.1 — Principal Leaders

- Executive Director.
- Patron.
- Chairperson.
- Vice-Chairperson.
- Secretary General.
- Treasurer.
- Members of the Executive Committee.
- Other leaders authorized by this Constitution, Regulations or the Executive Committee.

Article 5.1.1 — Chairperson

- Preside over General Assembly and Executive Committee meetings.
- Supervise compliance with the Constitution and ensure that institutional organs operate according to law and procedure.
- Promote unity, solidarity and ethics within the Foundation.
- Represent DCF in official functions when the Executive Director is absent or where responsibilities are allocated accordingly.
- Sign official documents requiring the Chairperson's approval.
- Follow up implementation of General Assembly decisions.
- Advise the Executive Committee on governance and institutional development.
- Perform any other lawful duty assigned by the General Assembly.

Article 5.1.2 — Vice-Chairperson

- Assist the Chairperson.
- Act as Chairperson during the Chairperson's absence.
- Perform other duties assigned by the Chairperson or Executive Committee.

Article 5.1.3 — Secretary General

The Secretary General shall be responsible for official records and communications of DCF.

- Prepare and maintain meeting minutes.
- Manage official communications.
- Prepare meeting agendas with the Chairperson and Executive Director.
- Maintain the membership register.
- Maintain important institutional documents.
- Prepare and circulate meeting reports.
- Supervise the records-management system.
- Perform other duties assigned under this Constitution.

Article 5.1.4 — Treasurer

The Treasurer shall manage DCF funds and financial records.

- Maintain accounting books.
- Collect institutional income.
- Ensure all funds are deposited in official DCF accounts.
- Prepare monthly income and expenditure reports.
- Prepare annual financial statements.
- Monitor budget implementation.
- Maintain financial documents.
- Cooperate with internal and external auditors.
- Submit financial reports to the Executive Committee and General Assembly.
- Perform other duties assigned under this Constitution.

Article 5.2 — Executive Committee Members

- Attend Executive Committee meetings.
- Participate in policy and development planning.
- Supervise implementation of General Assembly decisions.
- Advise leadership on institutional development.
- Protect DCF property, reputation and interests.
- Serve on subcommittees as assigned.

Article 5.3 — Leadership Ethics

- Put institutional interests ahead of personal interests.
- Avoid conflicts of interest.
- Protect institutional confidentiality.
- Do not use office for personal benefit.
- Avoid corruption, discrimination, harassment and unlawful conduct.
- Remain accountable for decisions and resources entrusted to the leader.

Article 5.4 — Patron

DCF shall have a Patron who serves as the principal adviser of the Foundation.

The Patron shall be appointed by the General Assembly on the recommendation of the Executive Committee.

The Patron shall be a person of good character, experience and standing in the community.

The term shall be five (5) years and may be renewed.

The Patron shall not participate in the day-to-day operations.

Duties include advising leaders on governance and development; protecting the vision, mission and values; assisting with major mediation when requested; representing the Foundation at special functions when authorized; and advising the General Assembly and Executive Committee without interfering with their decisions.

The Patron shall not vote unless the Patron is also a member entitled to vote.

Article 5.5 — Resignation or Leaving Office

A leader may resign by written notice to the competent organ.

A vacancy shall be filled in accordance with this Constitution.

An outgoing leader shall formally hand over institutional documents, property and information to the successor.

CHAPTER 6

MEETINGS, QUORUM, DECISION-MAKING PROCEDURES AND VOTING

Article 6.1 — Purpose of Meetings

DCF meetings are formal forums for discussion, planning, consultation and decision-making concerning the operation of the Foundation.

All meetings shall comply with this Constitution, Foundation Regulations and the laws of the United Republic of Tanzania.

Every participant shall respect meeting procedures, make constructive contributions and comply with lawful decisions.

Article 6.1.1 — Types of Meetings

Ordinary General Assembly: held annually to receive activity, financial and audit reports; approve the following year's budget; receive committee reports; discuss institutional development; and conduct elections where required.

Special General Assembly: convened for urgent matters, including constitutional amendments, removal or suspension of leaders, dissolution of the Foundation, major financial or administrative crises and other matters considered urgent by the Executive Committee.

Executive Committee meetings: held at least once every quarter or more frequently as required.

Special Committee meetings: held as necessary according to committee responsibilities, with reports submitted to the Executive Committee.

Article 6.2 — Notice

Ordinary General Assembly notice: at least twenty-one (21) days.

Special General Assembly notice: at least seven (7) days, except in an emergency.

Notice shall state the date, start time, venue, agenda and documents to be considered.

Notice may be issued in writing, by email, mobile message or another official method approved by the Executive Committee.

Article 6.3 — Quorum

Quorum for the General Assembly and Executive Committee shall be fifty percent plus one (50% + 1) of voting members.

If quorum is not reached within one hour, the meeting shall be adjourned and reconvened on another date determined by the Executive Committee.

An adjourned meeting shall follow the applicable notice procedure.

Article 6.4 — Conduct of Meetings

The Patron and Chairperson shall preside over meetings as applicable.

If the Chairperson is absent, the Vice-Chairperson or another authorized member shall preside.

The Secretary General shall maintain meeting records.

Every member shall have an opportunity to speak respectfully and without abusive, threatening or discriminatory language.

The Chairperson may warn or remove a person who disrupts a meeting after appropriate warning.

Article 6.5 — Decisions

Decisions shall, where possible, be reached through discussion and consensus.

Where consensus is not possible, the matter shall be decided by vote.

Decisions shall bind members unless they conflict with this Constitution or applicable law.

Article 6.6 — Voting Procedure

Ordinary decisions shall be made by simple majority.

Voting may be by show of hands, secret ballot or another lawful method approved by the meeting.

Leadership elections shall be by secret ballot unless the General Assembly lawfully decides otherwise.

Article 6.7 — Chairperson's Casting Vote

Each eligible voting member shall have one vote.

In the event of a tie, the Chairperson of the meeting shall have a casting vote to resolve the deadlock.

Article 6.8 — Minutes

The Secretary General shall prepare minutes within fourteen (14) days after a meeting.

Minutes shall be signed by the Chairperson and Secretary General after confirmation at the next meeting.

All minutes shall be maintained as official DCF records.

Article 6.9 — Remote Participation

Where circumstances permit, meetings may be held online or through another electronic communication system.

Participants shall be treated as officially present provided their identity is verified.

Article 6.10 — Confidentiality

Internal meeting decisions and information shall not be disclosed to unauthorized persons or institutions without approval of the Executive Committee.

A member who unlawfully discloses institutional confidential information shall be subject to disciplinary action under Chapter Eight.

CHAPTER 7

ELECTION OF LEADERS, TERMS OF OFFICE AND LEADERSHIP LIMITS

Article 7.1 — Purpose of Elections

DCF elections shall be conducted on democratic, transparent, equal, fair and member-independent principles.

Elections shall seek leaders who have competence, integrity, good ethics and commitment to institutional development.

No person shall be elected or appointed unless the person meets the requirements of this Constitution.

Article 7.2 — Elected Offices

- Chairperson.
- Vice-Chairperson.
- Secretary General.
- Treasurer.
- Members of the Executive Committee.
- Other offices designated for election by the General Assembly.

The Executive Director shall not be filled through the ordinary election process because the office is subject to the special provisions of Chapter Nine.

Article 7.3 — Candidate Qualifications

- Be a lawful DCF member.
- Meet membership requirements.
- Have no disciplinary sanction that disqualifies the person from candidacy.
- Demonstrate good character and integrity.
- Accept in writing to comply with the DCF Constitution.
- Where election regulations require it, be nominated by at least two eligible voting members.

Article 7.4 — Election Committee

The General Assembly shall establish an Independent Election Committee before an election.

The Committee shall have not fewer than three (3) and not more than seven (7) members, none of whom shall contest an office in the relevant election.

Its duties shall include receiving and verifying candidate forms; publishing the list of qualified candidates; supervising campaigns under election regulations; conducting voting and counting; announcing official results; and handling initial election complaints.

Article 7.5 — Election Procedure

Elections shall take place at a General Assembly convened in accordance with this Constitution.

Each eligible voter shall have one vote.

Leadership elections shall be by secret ballot unless lawfully decided otherwise.

The candidate receiving the highest number of votes shall be declared elected.

In the event of a tie, a repeat election shall be held among the tied candidates only.

Article 7.6 — Term of Office

Elected leaders shall serve for one (1) year.

A leader may be re-elected for one additional one-year term only.

After two consecutive terms, a leader shall not contest the same office until at least one election cycle has passed, unless this Constitution is amended.

Article 7.7 — Oath of Office

Elected leaders shall take an oath before commencing duties.

The leadership oath shall be in accordance with this Constitution and shall be administered before the General Assembly or an authorized authority.

No elected leader shall assume office before formal swearing-in.

Article 7.8 — Vacancy

An office becomes vacant upon written resignation, death, removal under this Constitution, loss of qualification, or prolonged inability to perform duties for a legally recognized reason.

Article 7.9 — Filling Vacancies

A vacancy occurring before the end of a term shall be filled by election or appointment as provided by this Constitution.

The person elected to fill a vacancy shall serve the remainder of the predecessor's term unless this Constitution provides otherwise.

Article 7.10 — Election Appeals

A candidate or member dissatisfied with an election process or result may appeal to the Election Committee within seven (7) days after results are announced.

If dissatisfied with the Committee's decision, the person may appeal to the General Assembly, whose decision shall be final within the Foundation.

Article 7.11 — Special Provision for the Executive Director

The term limits applying to elected leaders shall not apply to the Founder and Executive Director, whose position is governed by the special provisions of Chapter Nine.

CHAPTER 8

DISCIPLINE, ETHICS, DISPUTES AND APPEALS

Article 8.1 — Purpose

DCF shall be governed by integrity, accountability, transparency, respect, equality, human dignity and good governance.

Every member, leader and employee shall protect the dignity, reputation, property and interests of the Foundation.

Discipline and ethics are foundations of institutional success; every member shall therefore perform duties faithfully and in accordance with this Constitution.

Article 8.2 — Ethical Principles

- Integrity in decisions and resource use.
- Accountability to members, stakeholders and the community.
- Transparency in institutional activities.
- Respect for human dignity and human rights.
- Non-discrimination on the basis of gender, religion, tribe, race, disability or other status.
- Prevention of corruption and abuse of authority.
- Protection of institutional confidentiality.
- Promotion of solidarity, cooperation and peace.
- Compliance with the laws of the United Republic of Tanzania.

Article 8.3 — Member Responsibilities for Ethics

- Comply with the Constitution, Regulations and lawful decisions.
- Respect leaders, members and stakeholders.
- Protect confidential information.
- Protect DCF property.
- Use respectful language.
- Avoid conduct that damages the institutional image.
- Report constitutional or ethical violations to the competent authority.
- Cooperate with investigations of complaints or disciplinary matters.

Article 8.4 — Disciplinary Offences

- Breach of the Constitution or Regulations.
- Failure to attend three (3) consecutive lawful meetings without reasonable cause.
- Failure to pay required fees or contributions.
- Misappropriation of Foundation funds or property.
- Theft, fraud or forgery of DCF documents.
- Bribery or abuse of authority.
- Unauthorized disclosure of institutional confidential information.
- Sexual harassment, discrimination or threats.
- False information intended to damage the Foundation or its leaders.

- Forgery of signatures, seals or official DCF documents.
- Unauthorized use of the DCF name for personal benefit.
- Any act that violates national law or materially damages the reputation of DCF.

Article 8.5 — Discipline and Ethics Committee

A Discipline and Ethics Committee shall be established by the General Assembly.

It shall have not fewer than five (5) members as provided by this Constitution.

No Committee member shall participate in a matter in which the member has a conflict of interest.

Article 8.6 — Functions of the Discipline Committee

- Receive disciplinary complaints.
- Investigate allegations fairly and impartially.
- Summon complainants, respondents and witnesses.
- Receive written evidence, exhibits and other lawful evidence.
- Prepare an investigation report.
- Submit recommendations to the Executive Committee.
- Monitor implementation of disciplinary decisions.

Article 8.7 — Right to be Heard

No member or leader shall be disciplined without:

- Written notice of the allegations.
- Reasonable time to prepare a defence.
- An opportunity to defend oneself or through an acceptable representative.
- An opportunity to present evidence and call witnesses.
- A fair and impartial hearing.

Article 8.8 — Disciplinary Sanctions

- Verbal warning.
- Written warning.
- Fine in accordance with DCF Regulations.
- Suspension of membership for a period not exceeding six (6) months.
- Suspension from a leadership office.
- Removal from office.
- Expulsion from membership.
- Referral to Government authorities where the conduct constitutes a criminal offence.

Article 8.9 — Conflict of Interest

No leader or member shall participate in a decision concerning the person's own personal interest or that of a close relative.

A person with a conflict of interest shall disclose it promptly and withdraw from the relevant discussion and decision.

Article 8.10 — Internal Dispute Resolution

- Mediation through the Discipline Committee.

- Decision of the Executive Committee.
- Appeal to the General Assembly.
- Referral to the competent authority where the matter concerns a breach of national law.

Article 8.11 — Appeals

A member dissatisfied with a Discipline Committee decision may appeal to the Executive Committee within thirty (30) days.

If dissatisfied with the Executive Committee decision, the member may appeal to the General Assembly within thirty (30) days.

The General Assembly decision shall be final within the Foundation without prejudice to rights available under national law.

Article 8.12 — Protection of Whistleblowers

DCF shall protect any member, employee or stakeholder who, in good faith, reports constitutional violations, misappropriation or corruption.

No person shall be punished, threatened or disadvantaged for making a good-faith report.

The identity of a whistleblower shall be kept confidential except where disclosure is required by law.

CHAPTER 9

FOUNDERS, EXECUTIVE DIRECTOR AND SENIOR LEADERSHIP

Article 9.1 — Founders

DCF was established to advance community welfare through development activities, social services and humanitarian assistance. The official founders are:

- Mr. Baraka Oltimbau Lukumai.
- Mr. Patrick Nasoro Libenanga.

The founders shall be recognized for their contribution to establishing, building and developing the Foundation in accordance with this Constitution.

Article 9.2 — Status of Founders

The founders shall have permanent honorary status within DCF.

Such status shall not grant authority to interfere with decisions of institutional organs except where this Constitution expressly provides such authority.

Founders may attend General Assembly meetings, provide strategic advice and participate in official DCF activities in accordance with this Constitution.

Article 9.3 — Executive Director

The Founder shall serve as the Executive Director of DCF.

The Executive Director is the highest executive office and shall oversee the daily operations of the Foundation in accordance with the Constitution, Regulations and lawful decisions of governance organs.

The Executive Director shall ensure that DCF implements its objectives, vision and mission effectively.

Article 9.4 — Powers and Functions of the Executive Director

1. Manage the day-to-day operations of the Foundation.
2. Supervise implementation of General Assembly and Executive Committee decisions.
3. Protect and advance the vision, mission, objectives and principles of DCF.
4. Supervise staff and all institutional departments.
5. Appoint operational staff in accordance with approved policies and budget.
6. Represent DCF before Government, courts, donors and development stakeholders.
7. Sign contracts on behalf of DCF within the authority granted.
8. Supervise expenditure and institutional property in accordance with the Constitution and budget.
9. Prepare activity implementation reports for the Executive Committee and General Assembly.
10. Perform other duties lawfully assigned under the Constitution.

Article 9.5 — Accountability of the Executive Director

The Executive Director shall be accountable to the General Assembly through the Executive Committee in carrying out duties, except where this Constitution provides a different arrangement.

The Executive Director shall ensure that all institutional activities comply with national law, this Constitution and Foundation Regulations.

The Executive Director shall submit timely performance and resource-use reports.

Article 9.6 — Term of the Executive Director

The office of Executive Director is classified as a founding office subject to special constitutional conditions.

The term limits applicable to elected leaders under Chapter Seven shall not apply to this office in accordance with this Constitution.

Article 9.7 — Cessation of Office of the Executive Director

The office shall become vacant upon written resignation, permanent inability to perform duties due to a medically or otherwise lawfully established permanent condition, death, or conviction by a competent court for a serious criminal offence.

Administrative completion: Any determination of permanent inability shall follow a fair documented process and applicable law.

Article 9.8 — Appointment of a Successor

The Executive Committee, in consultation with members, shall recommend a new Executive Director whose appointment shall be approved by the General Assembly.

Article 9.9 — Handover

An outgoing leader shall formally hand over the office.

The handover shall include documents, property, seals, accounting books, contracts and all important institutional information.

The handover shall be documented in writing and signed by the parties and witnesses appointed by the Executive Committee.

Article 9.10 — General Provision

Founders, leaders and staff shall perform duties with integrity, transparency and in the interests of the Foundation.

Where a conflict arises between this Chapter and another Chapter concerning the status of founders or the Executive Director, this Chapter shall prevail to the extent applicable.

CHAPTER 10

FINANCE, PROPERTY, RESOURCES AND FINANCIAL ADMINISTRATION

Article 10.1 — General Principles

DCF funds and property shall be used to achieve the objectives, vision and mission of the Foundation.

All resources shall be managed with transparency, accountability, integrity, efficiency and in accordance with Tanzanian law.

No member, leader or employee shall have a personal ownership right over Foundation property except as permitted by law, this Constitution or lawful General Assembly decisions.

Article 10.2 — Sources of Funds

- Membership fees.
- Voluntary contributions from members and stakeholders.
- Donations from donors, organizations and institutions.
- Grants provided lawfully.
- Income from lawful institutional activities.
- Gifts, bequests and other legally acceptable support.
- Any other lawful source approved by the General Assembly.

Article 10.3 — Bank Accounts

The Foundation shall maintain one or more accounts with a legally registered bank or financial institution.

All DCF funds shall be deposited into official institutional accounts, except approved petty cash.

Where no official bank account exists, the Executive Committee shall recommend a lawful interim method for safeguarding funds.

Foundation funds shall not be kept in a personal account of a member or leader.

Article 10.4 — Bank Signatories

Bank accounts shall be operated by signatories approved by the Executive Committee.

Each payment shall require at least two (2) signatures from the designated signatories.

The Executive Committee may change signatories by a formal decision communicated to the relevant bank.

Article 10.5 — Budget

DCF shall prepare an annual budget for each financial year.

The budget shall be prepared by the Executive Director in cooperation with the Treasurer and submitted to the Executive Committee.

The Executive Committee shall submit the budget to the General Assembly for consideration and approval.

No major expenditure outside the budget shall be made without Executive Committee approval or General Assembly approval where required.

Article 10.6 — Use of Funds

- Development projects.
- Social services.
- Institutional operating costs.

- Training and development seminars for youth.
- Maintenance of Foundation property.
- Other lawful activities approved under the institutional plan and budget.

Article 10.7 — Accounting Books and Records

DCF shall maintain accurate accounting books in accordance with recognized accounting standards.

Every income and expenditure transaction shall be recorded promptly with supporting documentation.

An authorized member may access financial information through the prescribed procedure.

Article 10.8 — Audit

DCF accounts shall be audited at least once every year.

The auditor shall be appointed by the General Assembly or through the procedure established by the Constitution.

The audit report shall be submitted to the Executive Committee and thereafter to the General Assembly for consideration and approval.

Article 10.9 — Foundation Property

All property acquired in the name of DCF shall belong to the Foundation.

Property includes land, buildings, furniture, vehicles, office equipment, bank accounts, intellectual property, documents and other lawfully owned assets.

Foundation property shall not be distributed to members or leaders.

Article 10.10 — Donations and Grants

DCF may receive or provide assistance in accordance with this Constitution and national law.

All assistance shall be handled transparently and recorded in official institutional records.

No assistance shall be accepted or provided subject to conditions that conflict with this Constitution or Tanzanian law.

Article 10.11 — Financial Year

The financial year of DCF shall begin on 1 July and end on 30 June of the following year, unless the General Assembly decides otherwise in accordance with the law.

Article 10.12 — Financial Accountability

A leader or employee who causes loss of DCF funds or property through negligence, misappropriation or abuse of authority shall be accountable under this Constitution and national law.

In addition to disciplinary measures, the Foundation may seek recovery or compensation for the loss.

Where conduct constitutes a criminal offence, DCF shall refer the matter to the competent authority.

Article 10.13 — Members' Welfare Fund

DCF shall establish and operate a Members' Welfare Fund to assist members affected by bereavement, disasters and other challenges in accordance with this Constitution and Regulations.

The Fund shall be administered by the Executive Committee in cooperation with the Treasurer, and its use shall be approved with regard to the budget and financial capacity of the Foundation.

The level of assistance shall be determined by the Executive Committee based on the Foundation's financial position and the nature of the event.

Article 10.14 — Types of Member Assistance

Assistance may include money, funeral materials, transport, food or another form of support determined by the Executive Committee.

Bereavement: death of a member; spouse; child; parent; lawful guardian; or, where justified, another close relative.

Medical: serious illness requiring major treatment; accident requiring urgent treatment; major surgery; prolonged hospitalization; or another approved health challenge.

Social hardship: disability resulting from an accident; loss of housing due to disaster; major loss or destruction of property; or another special hardship approved by the Executive Committee.

Article 10.15 — Conditions for Assistance

A member shall qualify where the person is a lawful DCF member, complies with the Constitution and Regulations, has paid required contributions unless waived by the Executive Committee, the event is supported by acceptable evidence, and the application has been approved by the Executive Committee.

Article 10.16 — Funding the Welfare Fund

- Member contributions.
- DCF budget.
- Voluntary stakeholder contributions.
- Donors and development partners.
- Income from special fundraising activities.
- Any other lawful source approved by the General Assembly.

CHAPTER 11

AMENDMENT OF THE CONSTITUTION

Article 11.1 — Authority to Amend

This Constitution may be amended, repealed or supplemented only according to the procedure set out in this Chapter.

Final authority to amend the Constitution rests with the General Assembly, the highest decision-making organ of DCF.

Amendments shall aim to strengthen good governance, improve institutional effectiveness and maintain compliance with Tanzanian law.

Article 11.2 — Who May Propose Amendments

- Executive Committee.
- Executive Director.
- Special Committee established to review the Constitution.
- One member or a group of not fewer than one-third (1/3) of voting members.
- Another organ authorized by the General Assembly.

Article 11.3 — Submission Procedure

A proposed amendment shall be submitted in writing to the Secretary General.

The proposal shall identify the Chapter or Article proposed for amendment, the reasons for the amendment, and the proposed new wording.

The Secretary General shall submit the proposal to the Executive Committee for review before it is presented to the General Assembly.

Article 11.4 — Notice

All members shall receive written notice of a proposed constitutional amendment at least twenty-one (21) days before the General Assembly meeting at which it will be considered.

The notice shall include copies of the provisions proposed for amendment.

Article 11.5 — Adoption

An amendment shall be adopted by not less than two-thirds (2/3) of voting members present at a duly quorate General Assembly.

Voting on amendments shall be by secret ballot or another procedure approved by the General Assembly.

Article 11.6 — Protected Provisions

Amendments concerning the principal objectives of the Foundation, institutional status, fundamental member rights, or founder status as defined in this Constitution shall require support from at least three-quarters (3/4) of eligible voting members at a Special General Assembly.

Where national law requires a different procedure, the requirements of the law shall apply.

Article 11.7 — Commencement of Amendments

An amendment shall take effect after approval by the General Assembly and approval by the competent authority where required by law.

The Secretary General shall ensure all approved amendments are incorporated into the official Constitution and circulated to leaders and members.

Article 11.8 — Preservation of Versions

The Secretary General shall preserve the original Constitution and all amended versions.

Each version shall state the approval date, version number and effective date.

Article 11.9 — Interpretation

Where an interpretation conflict arises, the General Assembly shall provide the official institutional interpretation, taking account of the purposes of DCF and national law.

Such interpretation shall bind leaders, members and organs of DCF until the Constitution is amended.

Article 11.10 — Member Responsibility

Every member shall understand, respect and implement this Constitution and its amendments.

Ignorance of the Constitution shall not excuse a breach of the Constitution or Regulations.

CHAPTER 12

DISSOLUTION, DISTRIBUTION OF ASSETS AND TRANSITIONAL PROVISIONS

Article 12.1 — Authority to Dissolve

DCF may be dissolved where it is established that it can no longer achieve its objectives, lacks the capacity to operate, or for another lawful reason under the laws of the United Republic of Tanzania.

Dissolution shall be decided by a Special General Assembly convened specifically for that purpose.

No other governance organ shall have authority to dissolve DCF except the General Assembly in accordance with this Constitution and national law.

Article 12.2 — Grounds for Dissolution

- Persistent inability to achieve objectives.
- Insufficient membership to operate.
- Insolvency or inability to operate financially.
- Merger with another institution by General Assembly decision.
- Court or competent-authority decision under the law.
- Another lawful reason accepted by the General Assembly.

Article 12.3 — Notice of Dissolution Meeting

The Secretary General shall give all members written notice at least thirty (30) days before the Special General Assembly.

The notice shall state the reasons, date, time and venue; information on assets, liabilities and obligations; and the proposed dissolution procedure.

Article 12.4 — Quorum and Voting

Dissolution shall require support from at least three-quarters (3/4) of all eligible voting members present at a duly quorate Special General Assembly.

Voting shall be by secret ballot unless the General Assembly decides otherwise.

Article 12.5 — Liquidation and Handover Committee

After dissolution is approved, the General Assembly shall appoint a Liquidation and Handover Committee.

The Committee shall have at least five (5) members and shall prepare a complete asset register; verify liabilities; collect all institutional assets and funds; settle lawful debts; prepare final financial statements; and manage the handover in accordance with the Constitution and law.

Article 12.6 — Institutional Liabilities

Before distributing or transferring any remaining assets, DCF shall settle all lawful debts, taxes, salaries, employee entitlements and other legal obligations.

No member shall receive institutional assets before all liabilities have been settled.

Article 12.7 — Distribution of Assets After Dissolution

Any assets remaining after settlement of liabilities shall not be distributed to members, leaders or founders.

Remaining assets shall be transferred to another non-governmental institution with objectives similar to DCF or to a public institution designated by the General Assembly in accordance with national law.

Article 12.8 — Notice to the Registrar

After dissolution is approved, the Handover Committee shall submit an official notice to the Registrar or other authority responsible for institutional registration.

The notice shall include the General Assembly resolution, financial report, asset and liability register, and final activity report.

Article 12.9 — Transitional Provisions

Until the Foundation is formally dissolved in accordance with law, existing leaders shall continue to perform their duties for purposes of completing the handover process.

Contracts, debts, rights and obligations of DCF shall continue to be respected until lawfully completed.

Article 12.10 — Commencement of this Constitution

This Constitution shall take effect after adoption by the General Assembly of the Founders and approval by the competent authority where required by law.

From its effective date, this Constitution shall be the principal governing instrument of Development Charity Foundation and all members, leaders and staff shall be bound by it.

ADOPTION, APPROVAL AND SIGNATURES

We, the undersigned founders and authorized members of the Development Charity Foundation (DCF), confirm that this Constitution represents the governing framework adopted by the Foundation, subject to approval and recognition by the competent authority where required by law.

No.	Name / Office	Signature	Date
1	Founder / Executive Director	_____	_____
2	Founder	_____	_____
3	Chairperson	_____	_____
4	Secretary General	_____	_____
5	Treasurer	_____	_____
6	Witness / Authorized Representative	_____	_____

Official Effective Date: _____

Constitution Version: 2026 — English Edition

Place: Dodoma, United Republic of Tanzania

APPENDICES

The supplied Constitution contains an Appendix section but does not provide the appendix contents in the extracted text. To close that administrative gap without changing the substantive constitutional provisions, the following implementation templates are included. They may be completed and formally adopted by the competent DCF organ where required.

Appendix A — Leadership Oath (Template)

I, _____, having been elected/appointed as _____ of the Development Charity Foundation (DCF), solemnly undertake to uphold the Constitution, protect the interests and property of DCF, perform my duties with integrity, impartiality, transparency and accountability, respect the dignity of all persons, and comply with the laws of the United Republic of Tanzania.

Signature: _____ Date: _____

Appendix B — Conflict of Interest Declaration (Template)

I, _____, declare that I have disclosed any personal, family, financial or other interest that could improperly influence my duties on behalf of DCF. I undertake to update this declaration whenever a relevant conflict arises and to withdraw from decisions in which I have a conflict.

Signature: _____ Date: _____

Appendix C — Asset and Handover Record (Template)

Outgoing officer: _____

Incoming officer: _____

Office / Department: _____

Date of handover: _____

Documents handed over: _____

Assets handed over: _____

Financial records handed over: _____

Contracts / commitments handed over: _____

Outstanding matters: _____

Outgoing signature: _____ Incoming signature: _____

Witness: _____ Date: _____

Appendix D — Amendment Record (Template)

Amendment number: _____

Provision amended: _____

Reason for amendment: _____

Date proposed: _____

Date approved by General Assembly: _____

Required approval / registration reference: _____

Effective date: _____

Authorized signature: _____

Appendix E — Institutional Records Register (Template)

DCF shall maintain, as appropriate, an official register covering membership, meetings and minutes, resolutions, leaders and committees, financial records, assets, contracts, grants and donations, disciplinary matters, constitutional versions, amendments, and dissolution/handover records.

Administrative completion: The Secretary General shall maintain the master constitutional register and ensure that the latest approved version is identifiable by version number, approval date and effective date.